

Your rights as an agency worker

1. When you're an agency worker

You're an agency worker if you have a contract with an agency but you work temporarily for a hirer. Agencies can include recruitment agencies, for example 'temp agencies'.

You're also an agency worker if you look for work through [entertainment and modelling agencies \(/agency-workers-your-rights/entertainment-and-modelling-agencies\)](/agency-workers-your-rights/entertainment-and-modelling-agencies).

You're not an agency worker if you use an agency to find [permanent or fixed-term employment \(/employment-status/employee\)](/employment-status/employee). Check with the company that hired you.

[Contact the Advisory, Conciliation and Arbitration Service \(Acas\) for advice \(/pay-and-work-rights\)](/pay-and-work-rights) if you're unsure if you're an agency worker.

2. Fees

Recruitment agencies cannot charge you a fee for finding or trying to find you work.

They can charge you for certain services, for example CV writing, training or transport. You have the right to cancel these as long as you give notice.

If any agency offers you services it:

- must give you full written details of the fee and conditions before charging you - including details of your right to cancel and the notice period
- cannot make you use these services as a condition for finding you work

There are different rules for [entertainment and modelling agencies \(/agency-workers-your-rights/entertainment-and-modelling-agencies\)](/agency-workers-your-rights/entertainment-and-modelling-agencies).

When you want to cancel a service

You can cancel paid services without a penalty. You must give a minimum of:

- 10 working days' written notice to the agency to cancel living accommodation
- 5 working days' notice for all other services, such as training courses

You can [complain to the Advisory, Conciliation and Arbitration Service \(Acas\) \(/pay-and-work-rights\)](#) if you think your agency has unfairly charged you or it will not refund you during the notice period.

3. What your agency must give you

Your agency must give you information about the work they're trying to find you.

Before you're offered a job

Before looking for work for you, your agency must give you:

- a key information document
- written terms of engagement - often known as a contract

Key information document

The key information document is a short explanation of how you'll be paid and what deductions will be applied.

It must include:

- the minimum rate of pay you can expect
- a sample payslip giving an estimate of your take home pay after things like National Insurance, Income Tax or private healthcare
- who is paying you
- if you have any fees to pay
- if you're entitled to any benefits

Your agency does not have to give you a key information document if you've already agreed terms of engagement with them before 6 April 2020.

Terms of engagement

The written terms of engagement should include:

- whether you're employed under a contract for services or a contract of employment
- your notice period
- your pay
- your holiday entitlement

An agency cannot change your terms and conditions without telling you. If you agree to changes, you must be given a new document with the full details of the changes and the date they changed.

An agency cannot give information about you to any third parties (including current employers or hirers) without your permission.

When you're offered a job

The agency must give you a written statement that tells you:

- your start date
- how long the contract is likely to last
- the type of work
- about any expenses you may have to pay
- the location
- your hours
- about any health and safety risks
- about any experience, training or qualifications needed for the role

4. Equal treatment

From the day you start work you have a [worker's employment rights \(/employment-status/worker\)](#).

You also have the same rights as your permanent colleagues to use any shared facilities and services provided by your employer, for example:

- a canteen or food and drinks machines
- a workplace creche or mother and baby room
- car parking or transport services, like a local pick-up service or transport between sites

Rights after 12 weeks

After 12 weeks in the job you qualify for the same rights as someone employed directly. This is known as 'equal treatment'.

Your rights include:

- 'equal pay' - the same pay as a permanent colleague doing the same job
- automatic pension enrolment
- paid annual leave

How to count your 12 week period

Start counting your 12 week qualifying period from your first day at work.

You do not have to be at work for 12 weeks in a row - some types of leave count and there can be breaks.

Do not count days on sick leave or a break

The qualifying period will pause for sick leave or breaks. Do not count the days when:

- you take a break of 6 weeks or less
- you're on leave due to sickness or injury for up to 28 weeks
- you take annual leave you're entitled to
- the workplace closes, for example for Christmas or industrial action
- you're on jury service for up to 28 weeks

Count time off for pregnancy, paternity or adoption

Your 12 week qualifying period will continue through time off you have for:

- [pregnancy and up to 26 weeks after childbirth \(/agency-workers-your-rights/maternity-rights-for-agency-workers\)](/agency-workers-your-rights/maternity-rights-for-agency-workers)
- adoption leave
- paternity leave

If your leave is more than 12 weeks you'll qualify for equal treatment when you return to work.

Start from zero for a new job or role

Your 12 weeks will start again if you:

- get a new job at a different workplace
- have a break of more than 6 weeks between jobs at the same workplace
- stay at your workplace but take a new role that's 'substantively different'

A substantively different role is one that's completely new, different work. It could be a combination of different:

- skills, or requiring new training
- pay rate
- location
- working hours

5. Pay

You're entitled to the [National Minimum Wage \(/national-minimum-wage/what-is-the-minimum-wage\)](#) for all the hours you work, even if you have not recorded them on a timesheet.

After [12 weeks \(/agency-workers-your-rights/your-rights-as-a-temporary-agency-worker\)](#) you're entitled to be paid the same as a permanent employee doing the same job.

If your agency withholds your pay

Your agency can delay paying you while they get proof of the hours you worked, but only for a reasonable period of time.

Your agency cannot refuse to pay you because your hirer's unhappy with your work - this is a contractual issue between your agency and the hirer.

You can make a claim to an [employment tribunal \(/employment-tribunals\)](#) if your agency is refusing to pay you.

If you've opted out of the right to equal pay

Your agency should contact you to explain that after 12 weeks you're entitled to the same pay as a permanent employee doing the same job.

6. Maternity rights

You may be able to get [Statutory Maternity Pay \(/maternity-pay-leave/pay\)](/maternity-pay-leave/pay), but you cannot get [Statutory Maternity Leave \(/maternity-pay-leave/leave\)](/maternity-pay-leave/leave).

As an agency worker, you have [employee's pregnancy rights \(/working-when-pregnant-your-rights\)](/working-when-pregnant-your-rights) after working in your role for 12 weeks.

It's illegal to discriminate against you on the grounds that:

- you're pregnant
- you've given birth in the last 6 months
- you're breastfeeding

It's discrimination if your:

- agency refuses to place you in a job
- hirer refuses to hire you
- job was terminated because you're pregnant
- agency refuses to keep you on its books
- agency offers you only short jobs and gives longer ones to other agency workers
- hirer will not let you come back after having leave due to maternity

[Contact the Advisory, Conciliation and Arbitration Service \(Acas\) for advice \(/pay-and-work-rights\)](/pay-and-work-rights) if you believe you've been discriminated against.

If there's a risk to your health

Your hirer should make reasonable adjustments so you can do your job. If this isn't possible your agency must find you alternative work or pay you at the same rate for the expected length of your contract.

Antenatal care

After [12 weeks in the job \(/agency-workers-your-rights/your-rights-as-a-temporary-agency-worker\)](/agency-workers-your-rights/your-rights-as-a-temporary-agency-worker) you can get paid time off to go to 'antenatal care' if you cannot arrange it outside working hours.

Antenatal care includes antenatal classes, appointments and parenting classes if they've been recommended by a doctor or midwife.

You must also be paid for the travel time if it's during working hours.

7. Entertainment agencies

Entertainment agencies can charge you a fee:

- for finding you work, for example taking a commission (percentage fee) from your earnings
- to publish your details online or in a publication

They must tell you in writing if a fee is involved.

If they're publishing your details

Once you receive the contract, you have a 30-day 'cooling off' period when you:

- can cancel or withdraw from it without getting a penalty
- do not have to pay

The agency must show you what it plans to publish about you before it's published.

You then have up to 7 days after the cooling off period to say if you do not want the information to be published. If you're happy, you must pay after the 7 days.

Example

You've paid to be promoted on a casting agency's website. The agency shows you the photos 29 days after you signed the contract and you're not happy with them. You have 8 days to demand a refund.

If the agency charged you but did not publish your name, you have the right to a refund for up to 60 days.

[Contact the Advisory, Conciliation and Arbitration Service \(Acas\) for advice \(/pay-and-work-rights\)](#) if you believe you've been charged unfairly.

8. Modelling agencies

Fashion and photographic model agencies can charge you a fee for finding you work. They can take a commission (percentage fee) from your earnings.

They can also charge a fee to publish your details online or in a publication. They cannot charge this fee to you upfront but they can take it from your

earnings if they find you work.

They must tell you in writing if a fee is involved.

[Contact the Advisory, Conciliation and Arbitration Service \(Acas\) for advice \(/pay-and-work-rights\)](#) if you believe you've been charged unfairly.



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